

HIGH COURT · JUDGMENT DIGEST

Satish Kumar Bharti Urf Chotu v. State of U.P. & 2 Others

Application U/S 528 BNSS No. 36991 of 2025 (arising out of Case Crime No. 667 of 2020) | High Court of Judicature at Allahabad | Judgment, 29 June 2026

COURT	High Court of Judicature at Allahabad (Single Bench)
CORAM	Hon'ble Mr. Justice Anish Kumar Gupta
DATE OF JUDGMENT	29 June 2026
NATURE OF PROCEEDING	Application under Section 528, BNSS, seeking quashing of criminal proceedings under Section 135, Electricity Act, 2003 (Sessions Case No. 557 of 2023)
PARTIES	Satish Kumar Bharti alias Chhotu (applicant / accused) v. State of U.P. & 2 Others (respondents)
PROVISIONS	Section 135(1) & 135(1-A), Electricity Act, 2003; Section 57, Electricity Act, 2003; Clause 8.2, UP Electricity Supply Code 2005; Section 528, BNSS
RESULT	The application seeking quashing of criminal proceedings is allowed . The entire proceeding of Sessions Case No. 557 of 2023 (State v. Satish Kumar Bharti alias Chhotu) arising out of Case Crime No. 667 of 2020 under Section 135 of the Electricity Act, 2003, is quashed.

POINT FOR DETERMINATION

- Whether the 24-hour statutory requirement for lodging an FIR under Section 135(1-A), Electricity Act, 2003 (following disconnection for electricity theft) is imperative or merely directory, and if mandatory, what are the legal consequences of breach.
- Whether the specific category of offence under Section 135(1)(a) to (e) must be explicitly mentioned in the FIR, charge-sheet, or cognizance order, or whether reference to Section 135 in general suffices where the facts are categorical.

FACTS

On 26 October 2020, during an inspection by the Electricity Department, the applicant was found to have tapped an electricity connection directly without any valid authorization or supporting documents. No authorized connection or permission was produced. Videographic evidence of the illegal installation was recorded by the inspecting authority.

An FIR was lodged on 30 October 2020 — that is, *four days* after the detection on 26 October 2020 — under Section 135 of the Electricity Act, 2003, at P.S. Anti Power Theft, District Chandauli. The case was investigated and a charge-sheet was filed. Cognizance of the offence was taken by the Special Judge, Chandauli vide order dated 5 July 2023.

The applicant filed the present application contending that: (i) the FIR should have been lodged within 24 hours from the date of disconnection under the second proviso to Section 135(1-A), and as it was lodged four days later, no cognizance could be taken; and (ii) the FIR, charge-sheet, and cognizance order failed to specify which of the five categories under Section 135(1)(a) to (e) the offence fell within, rendering the cognizance order unsustainable.

REASONING OF THE COURT

HEADNOTE

Where a statutory requirement to lodge an FIR within a specified period is prescribed in an Act — here, 24 hours under Section 135(1-A) of the Electricity Act, 2003 — and consequences for breach are provided in the Act or in subordinate regulations (Section 57, and Clause 8.2 of the Supply Code), the requirement is not merely procedural or directory. When the requirement is breached by four days, and the provision carries substantive consequences, the entire criminal proceeding must be quashed. A prior coordinate bench holding the requirement to be merely directory is *per incuriam* if it overlooked those consequences.

Mandatory versus directory: the statutory framework. Section 135(1-A) mandates that the officer shall lodge a written complaint within 24 hours of disconnection. The use of ‘shall’ and the prescription of conditions in provided clauses indicate an imperative requirement. Moreover, Section 57 of the Electricity Act and Clause 8.2 of the UP Electricity Supply Code 2005 prescribe explicit consequences for breach of such timelines — they are not merely procedural nullities. (Para 10–11)

The principle: manner of direction entails validity of method. The Court relied on the principle established in *Dr. Arun Kumar v. Nagar Nigam, Bareilly* (applied via *Varun Kumar Yadav*): ‘once a particular thing is directed to be done in a particular manner, anything done otherwise will be void and illegal.’ (Para 10) This principle applies to the 24-hour requirement; lodging an FIR after four days does not comply with the prescribed manner.

Indresh Patel is per incuriam: consequences were overlooked. A prior Division Bench in *Indresh Patel @ Indreshwar Singh v. State of U.P. and 4 Others* (Criminal Misc. Writ Petition No. 265 of 2023) had held the 24-hour requirement to be merely directory with no consequences for breach. The Court found this holding to be per incuriam because it failed to consider Section 57 and Clause 8.2 of the Supply Code, both of which prescribe consequences for non-compliance. Once consequences are prescribed, the requirement becomes substantive and binding. (Para 11)

The facts of this case: four-day delay is material non-compliance. It is admitted that the FIR was lodged on 30 October 2020, four days after the detection on 26 October 2020. This is a clear and unambiguous breach of the 24-hour requirement. The applicant did not produce any document suggesting authority for the electricity use, and videographic evidence confirmed the illegal installation. However, the manner of invoking criminal proceedings was itself defective. (Para 3, 10–12)

Specification of category is not fatal where facts are categorical. Though the FIR did not explicitly mention which sub-clause of Section 135(1) (clauses (a) to (e)) was engaged, the factual narration — ‘connection tapped directly without authorization’ — is categorical and clearly falls within Section 135(1)(a). The different categories in sub-section (1) are merely definitions within the broader offence of electricity theft. The Court found non-mention of the specific category did not cure the fundamental defect of non-compliance with the 24-hour requirement. (Para 10)

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1) — Categories of Electricity Theft

Section 135(1) prescribes five distinct ways in which electricity may be stolen: (a) unauthorized tapping of lines or cables; (b) tampering with meters or installing reversed devices; (c) damaging metering apparatus; (d) using electricity through a tampered meter; (e) using electricity for unauthorized purpose. All attract the same punishment — imprisonment up to 3 years or fine or both. These categories are *definitions* of theft, not separate offences requiring separate charging; reference to Section 135 generally, with categorical facts, suffices.

Section 135(1-A) — Mandatory 24-Hour Procedure for Complaint

Where an officer of the licensee detects electricity theft and disconnects supply, *that* officer or a higher-ranked officer *shall* lodge a written complaint with the police station *within 24 hours* from the disconnection. The provision uses ‘shall’, indicating imperative duty. The requirement is not merely procedural; it is a condition precedent to the initiation of criminal proceedings.

Section 57 — Licensee's Duty and Compensation for Non-Compliance

Section 57 imposes a standard of performance on the licensee. Failure to meet such standards — including the timelines in Section 135(1-A) — exposes the licensee to compensation liability. This provision confirms that the 24-hour requirement carries substantive consequences, not merely directory ones.

Clause 8.2, UP Electricity Supply Code 2005 — Supply Code Reinforces Timeline

Clause 8.2 reiterates that a complaint before police must be lodged within 24 hours and the case filed before the Special Court within 30 days. Failure to do so attracts the obligations under Section 57. This subordinate regulation confirms the mandatory status of the 24-hour requirement and prescribes remedies for breach.

RATIO DECIDENDI

Where a statutory requirement prescribes that a thing be done in a particular manner — here, lodging an FIR within 24 hours of disconnection for electricity theft — *and* consequences for breach are provided in the Act or its subordinate regulations, the requirement is mandatory and imperative, not merely directory. A breach of such a requirement invalidates the criminal proceeding initiated in breach thereof, and the proceeding must be quashed. Prior precedent holding such requirement to be directory is *per incuriam* if it overlooks the prescribed consequences.

ALSO HELD & OBITER

- **The criminal gravity of electricity theft does not override procedural compliance.** Although electricity theft is a serious criminal offence undermining the licensee’s revenue and infrastructure, procedural non-compliance by the authorities cannot be overlooked in the name of substantive justice. The authorities are bound by statute to follow the prescribed manner of invocation.
- **Direction against respondent no. 3 for prosecutorial dereliction.** The Court directed respondent no. 2 to initiate appropriate proceedings against respondent no. 3 for having failed to lodge the FIR within the stipulated period as mandated by Section 135(1-A), signaling that the failure was not a mere technical slip but a breach of statutory duty.

DISPOSITION

Application **allowed**. The entire proceeding of Sessions Case No. 557 of 2023 (State v. Satish Kumar Bharti alias Chhotu) arising out of Case Crime No. 667 of 2020 under Section 135 of the Electricity Act, 2003, pending in the Court of Additional District & Sessions Judge, FTC, Chandauli, is quashed. Respondent no. 2 is further directed to initiate appropriate proceedings against respondent no. 3 for having failed to lodge the FIR within the stipulated period mandated under Section 135(1-A) of the Act, 2003.

SIGNIFICANCE

A Single Bench decision resolving a conflict in High Court precedent on the mandatory nature of statutory timelines in electricity-theft cases. Four points emerge:

- **The 24-hour requirement is imperative, not merely procedural.** The Court held that where an Act prescribes a manner for doing a thing and provides consequences for breach, the requirement is not merely directory but mandatory. This principle, drawn from Supreme Court precedent, trumps a prior co-ordinate bench decision.
- **Subordinate regulations (Supply Code) supply the consequences.** Where the parent Act does not expressly spell out consequences (as Section 135 does not), the consequences may be supplied by regulations framed under it (Section 57 and Supply Code Clause 8.2). Once consequences are prescribed, the requirement becomes substantive.
- **Prior precedent holding breach inconsequential is reviewable.** A Division Bench judgment (*Indresh Patel*) holding the 24-hour requirement to be merely directory was found to be *per incuriam* for having overlooked the prescribed consequences. This opens the door to revisiting prior coordinate-bench precedent when critical statutory provisions are overlooked.
- **Procedural non-compliance vitiates proceedings even in serious crime.** Despite electricity theft being a serious offence, procedural violation by the prosecuting authority — here, a four-day delay in lodging FIR — results in outright quashing of the proceeding, not mere remission or correction.
- **Prosecutorial duty for timeline compliance carries personal responsibility.** The direction to initiate proceedings against the officer responsible for the delay signals that failure to follow statutory timelines is not a mere administrative lapse but a breach of duty.

TABLE OF AUTHORITIES

Authorities discussed in the judgment, with the treatment each received. “Relied on”, “Distinguished”, and “Overruled” reflect the Court’s own characterisation and application.

AUTHORITY	PROPOSITION & HOW TREATED	TREATMENT
<i>Varun Kumar Yadav v. State of U.P. and Others</i> 2025(7) ADJ 710 · Allahabad High Court	Held that the 24-hour requirement for lodging FIR under Section 135(1-A), Electricity Act, 2003, is not merely directory but is mandatory and imperative. Applied the principle that ‘once a particular thing is directed to be done in a particular manner, anything done otherwise will be void and illegal.’ Against this judgment, a Special Leave Petition was filed before the Apex Court (SLP (Crl.) Diary No. 74474 of 2025), with notices issued on 23.1.2026.	Relied on

AUTHORITY	PROPOSITION & HOW TREATED	TREATMENT
<i>Indresh Patel @ Indreshwar Singh v. State of U.P. and 4 Others</i> Criminal Misc. Writ Petition No. 265 of 2023, dated 6.2.2013 · Allahabad High Court (Division Bench)	Held that Section 135(1-A)'s 24-hour requirement is only directory, carrying no consequences for breach. Distinguished and found to be <i>per incuriam</i> because it failed to consider Section 57 of the Electricity Act and Clause 8.2 of the UP Electricity Supply Code 2005, both of which prescribe substantive consequences for non-compliance with the timeline.	Distinguished
<i>Ashim @ Hassim v. State of U.P. and Another</i> Criminal Misc. Writ Petition No. 18729 of 2023, dated 2.12.2023 · Allahabad High Court (Division Bench)	Applied specific-offence-category reasoning under the Gangster Act. Distinguished on the ground that the Gangster Act provisions have an entirely different connotation regarding the requirement to specify offence categories, and the principle cannot be transplanted to the Electricity Act.	Distinguished
<i>Dr. Arun Kumar v. Nagar Nigam, Bareilly</i> 2017(2) ADJ 638 · Supreme Court	Established the foundational principle that ‘once a particular thing is directed to be done in a particular manner, anything done otherwise will be void and illegal.’ Applied to establish that the 24-hour requirement is substantive and compliance therewith is mandatory.	Relied on

This digest is a condensed reference prepared from the text of the judgment. It is not a substitute for the full judgment and should be verified against the original before use.